

TENTATIVE RULING(S) FOR AUGUST 18, 2026

Department S37 – Judge Winston Keh

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CIVSB2516010

Coleman v. Hernandez

TENTATIVE RULING(S):

PROCEDURAL BACKGROUND

Case No. CIVSB2516010 (Coleman Matter)

Plaintiffs Keneisha Coleman and Kennedy Coleman, Jr. filed a Complaint on June 4, 2025, against Defendants American Medical Response Ambulance Services, Inc.; American Medical Response of Southern California Company; and Andrei Hernandez. The operative First Amended Complaint, filed on March 19, 2026, alleges one cause of action for wrongful death. Plaintiffs allege that their mother, Louise Webb, passed away on May 3, 2024, due to Defendants' negligence in a February 18, 2022 incident where Webb suffered a cardio-respiratory arrest during transport to the hospital and thereafter remained in a near vegetative state until her death two years later. (FAC ¶¶ 22, 26.)

Related Case No. CIVSB2305418 (Webb Matter)

Louise Webb filed a Complaint on February 21, 2023, for negligence regarding the February 18, 2022 incident in Case No. CIVSB2305418. Following Webb's death in 2024, Keneisha Coleman substituted as her successor-in-interest in the *Webb* matter.

On April 14, 2024, the Court ordered the cases related.

The parties have previously disputed whether the two cases should be consolidated, and an OSC regarding consolidation is set for August 18, 2026 in CIVSB2305418. On May 11, 2026, the Court requested briefing from the parties on consolidation and the statute of limitations issue in the *Coleman* matter. In their briefing, the parties stated that they stipulated the two matters should be consolidated, but Defendants do not waive any defenses, including the statute of limitations defense at issue in the demurrer. (Def.'s 5/21/26 Brief at pp. 2-3; Pl.'s 5/29/26 Brief at pp. 5-6.)

Demurrer in the *Coleman* Matter

Defendants' demurrer to the first cause of action for wrongful death is before the Court. Defendants demur generally on the ground that Plaintiffs fail to state sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiffs oppose. Defendants replied.

Defendants' Request for Judicial Notice

Defendant requests the Court take judicial notice of the First Amended Complaint filed in the *Webb* matter. (RJN ¶ 1, Dik Decl. Ex. A.) The request is GRANTED under Evid. Code, § 452, subd. (d).

Plaintiffs' Objections to the Dik Declaration

Plaintiffs filed objections to the Declaration of Daniel K. Dik in support of Defendants' demurrer.

1. **Objections to paragraphs 4 -10 are sustained.** Those paragraphs consist largely of legal argument rather than facts as to which counsel would have personal knowledge. (Evid. Code, § 702.)
2. **Objections to paragraphs 1, 2, 3, and 11 are OVERRULED.** Paragraph 1 describes counsel's employment and purpose in making the declaration, which are facts counsel could personally know Paragraphs 2 and 11 describe meet and confer efforts and are similarly factual. Paragraph 3 summarizes the FAC and does not appear to contain legal argument.

Additionally, even if the objections were overruled, the Dik Declaration is irrelevant to the demurrer insofar as a demurrer may challenge only defects appearing on the face of the pleading or from matters outside the pleadings that are judicially noticeable. Accordingly, the Court considers the Dik Declaration only for the limited purpose of the parties' meet-and-confer efforts and not for determining the sufficiency of the demurrer.

Analysis

Defendants contend the wrongful death claim is time-barred by the statute of limitations. They argue Code of Civil Procedure section 340.5 supplies a one-year limitations period for professional negligence actions. Defendants further argue Plaintiffs knew of the alleged negligence at or before the time of death because a prior complaint based on the same alleged negligence was filed in the Webb matter on February 21, 2023, while Webb died on May 3, 2024; Plaintiffs filed the Coleman complaint on June 4, 2025—more than one year later. (Mtn. at pp. 7–11.)

Defendants additionally argue the Coleman action does not relate back to the Webb pleading. Plaintiffs respond they do not rely on relation-back, but instead contend the discovery rule renders the Coleman complaint timely.

Statutory framework and discovery rule

Code of Civil Procedure section 340.5 provides that an action for injury or death against a health care provider based upon professional negligence must be brought within: (1) three years after the date of injury, or (2) one year after the plaintiff discovers, or through reasonable diligence should have discovered, the injury—whichever occurs first. There is no dispute that the one-year period governs here.

The discovery rule postpones accrual until the plaintiff discovers, or has reason to discover, the cause of action. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1318.) Where the complaint shows on its face that the claim would be time-barred absent the benefit of the discovery rule, the plaintiff must specifically plead facts showing: (1) the time and manner of discovery, and (2) the inability to have made earlier discovery despite reasonable diligence. (*McKelvey v. Boeing North American, Inc.* (1999) 74 Cal.App.4th 151, 160.) Conclusory allegations do not withstand demurrer. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

Application to the First Amended Complaint

Defendants argue the FAC fails to adequately plead delayed discovery.

The FAC alleges Defendants' alleged wrongful acts occurred on February 18, 2022. (FAC ¶ 26.) Webb remained in a "near vegetative state" until her death on May 3, 2024. (FAC ¶ 26.) A death certificate issued on June 5, 2024 states the cause of death was respiratory failure due to chronic obstructive pulmonary disease. (FAC ¶ 27.) Plaintiffs allege they received the death certificate "sometime after" it was issued and did not know or suspect a causal connection between Defendants' conduct and Decedent's death until sometime after receiving the death certificate and conducting "further inquiry." (FAC ¶¶ 26–28.)

Viewed most favorably to Plaintiffs, the FAC pleads a discovery date sometime after June 5, 2024—which would be within one year of the June 4, 2025 filing date. Plaintiffs could have provided more specificity as to timing, but the timeliness issue turns on whether the FAC adequately pleads the manner of discovery and **reasonable diligence**.

The FAC, however, does not adequately plead the **manner of discovery**. Plaintiffs do not allege they learned of a causal connection from the death certificate itself. Instead, they allege they did not know or suspect a causal connection until "after the receipt of the death certificate upon further inquiry." (FAC ¶ 28.) The pleading does not identify what the further inquiry involved or provide facts describing how Plaintiffs learned of the causal connection.

The FAC likewise does not adequately allege **inability to discover earlier despite reasonable diligence**. Plaintiffs state only that they made "further inquiry" after receiving the death certificate, without factual allegations describing what they did, when they did it, or how those steps amount to reasonable diligence. Plaintiffs argue the two-year period and alleged complexity of the care supports inability to discover earlier. Even liberally construed, the FAC provides no facts supporting reasonable diligence under the discovery rule standard.

Because Plaintiffs fail to plead facts showing both the manner of discovery and reasonable diligence for delayed discovery, the demurrer is properly sustained as to the first cause of action.

Code of Civil Procedure section 364 notice

Defendants also argue no notice was given under Code of Civil Procedure section 364 prior to filing.

Section 364 provides that no action based upon professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action. (Code Civ. Proc., § 364, subd. (a).)

However, section 365 provides that failure to comply with this chapter does not invalidate proceedings or affect the court's jurisdiction to render judgment. (Code Civ. Proc., § 365.) Courts have held that failure to comply with section 364 is not a basis for a demurrer or a motion to strike that would dispose of the action.

See Toigo v. Hayashida (1980) 103 Cal.App.3d 267, 269.

Accordingly, section 364 does not provide a proper basis to sustain a demurrer.

Ruling

1. **Defendants' demurrer is SUSTAINED with 20 days leave to amend.** The FAC is filed more than one year after Webb's death and does not plead sufficient facts supporting delayed discovery under Code of Civil Procedure section 340.5.
2. **Defendants' request for judicial notice is GRANTED**, and the Court takes judicial notice of the existence of the first amended complaint in the Webb matter.
3. **Plaintiffs' objections to paragraphs 4–10 of the Dik Declaration are SUSTAINED.**
4. **Plaintiffs' objections to paragraphs 1, 2, 3, and 11 of the Dik Declaration are OVERRULED.**

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CIVSB2520898

Montes v. GM

TENTATIVE RULING(S):

Before the Court is Plaintiff's fee motion totaling \$31,432.77. This figure includes \$21,718.40 in attorney's fees; a lodestar of 0.3, increasing attorney's fees by \$6,515.52; additional anticipated attorney's fees of \$2,500.00; and costs of \$698.85. Defendant opposes and Plaintiff replies.

Attorney's Rates

Plaintiff requests hourly rates of \$575 for lead attorney Ashkan Reza (12 years' experience); \$375 for attorneys Lauren Warwick and Chris Grigoryan; \$140 for case manager/legal assistant Michelle Nguyen; \$125 for case managers Dianne Martin and Cristian Rivera; \$258 for law clerk Donya Akradi; \$125 for legal assistant Patrice Go; and \$95 for intake specialist Noemi Antipuesto and case manager Chris Coyoc. (Reza Decl., ¶¶20–36.)

Reza contends his rates are often approved and submits two Los Angeles County Superior Court decisions. (Reza Decl., ¶¶26–27; Exhs. E, F.) Defendant argues generally that the rates are excessive, but does not propose specific reductions. The Court reduces the rates as follows: Reza to \$500 per hour; junior attorneys to \$300 per hour; and the law clerk to \$200 per hour. These reduced rates are more appropriate in San Bernardino County. Defendant expressly accepts the staff rates for the other categories, and they appear reasonable. With these adjusted rates, the Court finds the requested fees adequately compensate counsel, and no multiplier is warranted.

Reasonable Hours

The starting point for any fee award is a calculation of reasonable hours reasonably expended. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) Invoices are attached as Exhibit D. Plaintiff does not separately total each biller, but based on the Court's calculation, attorney Reza billed 9.3 hours; attorney Warwick billed 30.7 hours; attorney Grigoryan billed 1.5 hours; and law clerk Akradi billed 4.8 hours. Administrative staff billed more hours at their respective rates.

Defendant challenges the time entries. First, Defendant argues work performed by attorney Reza could have been performed by a lower-billing attorney. Most of Reza's work concerns this fee motion, and it is reasonable that the senior attorney handle the fee motion given counsel's likely control over billing matters. The Court declines to reduce the claim on this basis.

Second, Defendant argues certain entries are duplicative. The Court does not find attorney time duplicates administrative time; instead, the challenged administrative entries primarily reflect clerical matters more properly characterized as overhead. The Court deducts the following:

- \$475 from case manager Martin's time (3.8 hours at \$125/hour);
- \$28 from case manager/legal assistant Nguyen's time (0.2 hours at \$140/hour);
- \$87.50 for legal assistant Go (0.7 hours at \$125/hour);
- \$57.00 for intake specialist Antipuesto (0.6 hours at \$95/hour).

These deductions total \$647.50.

Third, Defendant challenges other entries highlighted in blue and gold as unreasonably high, including time to prepare and prosecute the fee motion and time spent reviewing disclosures. The Court finds the time challenged in these highlights reasonable.

Finally, Defendant challenges the \$2,500 request for anticipated fees related to the fee motion. The Court finds that the approximately 6.2 hours claimed to prosecute the fee motion to date is sufficient to cover prosecution of the entire motion, which is repetitive and routine. The Court therefore declines to award the \$2,500 in anticipated fees.

Lodestar Calculation

In light of the above reductions, the Court sets the lodestar as follows:

- Total Claimed: \$31,432.77
- Reduction for attorney Reza: -\$697.50 (rate reduced from \$575 to \$500 for 9.3 hours)
- Reduction for attorney Warwick: -\$2,302.50 (rate reduced from \$375 to \$300 for 30.7 hours)
- Reduction for attorney Grigoryan: -\$112.50 (rate reduced from \$375 to \$300 for 1.5 hours)
- Reduction for law clerk Akradi: -\$278.40 (rate reduced from \$258 to \$200 for 4.8 hours)
- Reductions for clerical work: -\$647.50

AWARD: \$27,394.37

Although not reflected in this calculation, the Court denies Plaintiff's request for \$2,500 in anticipated time for work on the fee motion.

Multiplier

Plaintiff seeks a 0.3 multiplier. However, the purpose of a multiplier is to fix the fee at the fair market value for the particular action, and the multiplier generally may not apply to work related to the attorney fee motion. (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833; *Pellegrino v. Robert Half Intern., Inc.* (2010) 182 Cal.App.4th 278, 296.)

As explained in *Ketchum v. Moses*, the contingent risk adjustment is intended to align incentives for fee award cases with the fair market value of services where there is risk and delay. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132–1133.) Nevertheless, the Court finds the contingency nature and delay are already adequately addressed by the adjusted hourly rates. Additionally, although Plaintiff prevailed, the results are not sufficiently extraordinary to justify an enhancement, particularly given the routine nature of

lemon law cases and Plaintiff's failure to state how much money was received in settlement. The Court therefore denies the multiplier.

Costs

Costs are typically challenged by a motion to tax costs served and filed within 15 days after service of the cost memorandum. (Cal. Rules of Court, rule 3.1700(b).) Here, Plaintiff filed her memorandum of costs concurrently with the motion. Defendant has not affirmatively challenged the \$698.85 in costs claimed, and has not moved to tax. The Court therefore grants costs in full.

RULING

1. The Court **GRANTS** Plaintiff's request for attorney's fees exclusive of costs in the amount of **\$27,394.37**;
2. The Court **DENIES** Plaintiff's request for a multiplier; and
3. The Court **ALLOWS** costs in the amount of **\$698.85**.

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CIVSB2523192

Sewalt v. DOES

TENTATIVE RULING(S):

Plaintiff, appearing in propria persona, moves to compel compliance with a purported deposition subpoena directed to the school district. The motion is **DENIED**.

The motion fails at the threshold because Plaintiff has not demonstrated that a valid deposition subpoena was issued and properly served upon the school district. There is nothing presently before the Court that can be enforced against the school district. Plaintiff cannot obtain an order compelling a nonparty to comply with a subpoena that was never validly issued and served upon that nonparty.

The evidence before the Court does not establish that Plaintiff served a properly completed subpoena directed to the school district. Instead, the subpoena was purportedly served upon an individual identified only as "Harold H.," without establishing that he was an officer, director, custodian of records, or an agent

or employee authorized by the school district to accept service of a subpoena. Service upon an individual does not constitute service upon an organization unless the requirements of Code of Civil Procedure section 2020.220(b)(2) are satisfied.

Accordingly, the Court need not reach the merits of the particular information or documents Plaintiff seeks, including whether the requested discovery is relevant, privileged, protected by other statutory provisions, or otherwise subject to objection.

Plaintiff is not precluded from seeking nonparty discovery in the future through a properly issued, completed, and served deposition subpoena that complies with the requirements of the California Code of Civil Procedure and any applicable notice requirements.

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CIVSB2515007

Lomeli v. GAF Materials LLC

On September 29, 2025, Defendant Express Employment Professionals, LLC (“Express”) filed the instant Motion to Compel Arbitration of Plaintiff’s Individual PAGA Claim and to Stay the Representative PAGA Claim (“Motion”), supported by declarations from Harvey H.H. Homsey (“Homsey”) and Nora Stilestein. On October 20, 2025, Defendant GAF Materials, LLC (“GAF”) filed a Joinder in Express’s Motion (“Joinder”).

Plaintiff filed his Opposition to the Motion (“Opposition”) on January 27, 2026, supported by a declaration from Plaintiff. Express filed its Reply on February 2, 2026, supported by a declaration from Ashley Rowlett and objections to Plaintiff’s declaration (“Evidentiary Objections”).

On March 12, 2026, the Court continued the hearing and permitted the parties to file supplemental briefs.

On May 15, 2026, Express filed a Supplemental Brief in Support of its Motion. Plaintiff filed his Supplemental Brief in Support of his Opposition on May 29, 2026.

Evidentiary Objections

Express objects to paragraph 5 of Plaintiff's declaration on the grounds of speculation, irrelevance, lack of foundation, and hearsay.

The Court SUSTAINS Express's objections to Plaintiff's statements at page 2, line 28 through page 3, line 1, and page 3, lines 6–7, on the grounds of hearsay and lack of foundation. Plaintiff states that the basis for his conclusion that a "substantial amount of the products that I was involved with packing for shipment were headed to other states outside of California" was based, at least in part, on conversations with his coworkers. Plaintiff does not establish a foundation for those coworkers' purported statements or otherwise establish that the statements fall within an exception to the hearsay rule.

The Court OVERRULES Express's remaining objections to paragraph 5 of Plaintiff's declaration.

The Merits of Moving Defendants' Motion

Contractual Relationship Between Plaintiff and Express

Express contends Plaintiff executed a Mutual Arbitration Agreement ("Agreement") on September 11, 2024. According to Homsey's declaration, the Agreement was executed as part of Plaintiff's onboarding documents. Plaintiff does not dispute that he signed the Agreement.

Based on the foregoing, the Court finds that Plaintiff entered into the Agreement and proceeds to the enforceability of that Agreement.

Application of Federal and State Law

The Federal Arbitration Act ("FAA") applies to arbitration agreements involving interstate commerce. (9 U.S.C. § 2; *Aviation Data, Inc. v. American Express Travel Related Services Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534.) "Involving commerce" is interpreted broadly and is the equivalent of "affecting commerce," which signals the broadest permissible exercise of Congress's Commerce Clause power. (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56–57.) The party seeking to invoke the FAA bears the burden of establishing that the transaction falls within the FAA's coverage. (*Shepard v. Edward Mackay Enterprises, Inc.* (2007) 148 Cal.App.4th 1092, 1101.)

Here, the Agreement expressly provides:

“The Parties agree that the Company is engaged in transactions involving interstate commerce, and this Agreement shall be enforceable under the substantive and procedural provisions of the Federal Arbitration Act (‘FAA’), 9 U.S.C. §§ 1, et seq.”

The FAA, however, contains an exemption for “contracts of employment of seamen, railroad employees, or any other class of workers engaged in foreign or interstate commerce.” (9 U.S.C. § 1.) The United States Supreme Court has construed this residual clause to exempt transportation workers from the FAA. (*Circuit City Stores, Inc. v. Adams* (2001) 532 U.S. 105, 119.) Whether an employee falls within the exemption turns on the nature of the employee’s work, rather than the general nature of the employer’s business. (*Southwest Airlines Co. v. Saxon* (2022) 596 U.S. 450, 455–56; *Bissonnette v. LePage Bakeries Park St., LLC* (2024) 601 U.S. 246, 256.)

In *Saxon*, the United States Supreme Court held that airline ramp agents who frequently loaded and unloaded baggage, airmail, and commercial cargo onto and from aircraft engaged in interstate transportation were transportation workers. The Court explained that transportation workers must play a direct and necessary role in the free flow of goods across borders and be actively engaged in transportation of those goods. (*Saxon*, supra, 596 U.S. at pp. 458–59.) The Court cautioned, however, that the exemption does not extend to every employee whose work has some connection to goods eventually moving in interstate commerce.

Plaintiff argues that he falls within the transportation-worker exemption because he prepared and packaged finished roofing shingles for shipment to customers outside California. Plaintiff relies principally on *Ortiz v. Randstad Inhouse Services, LLC* (9th Cir. 2024) 95 F.4th 1152.

Ortiz is distinguishable. There, the plaintiff worked at a warehouse that received Adidas products from mostly international locations. The products remained at the warehouse before being shipped to consumers and retailers in various states. The plaintiff transported packages to and from storage racks, assisted employees in obtaining packages for shipment, and assisted in preparing packages for their subsequent shipment. The Ninth Circuit held that these workers handled goods while the goods remained

in the flow of interstate commerce and played a direct and necessary role in facilitating their continued movement. (*Ortiz*, supra, 95 F.4th at pp. 1161–62.)

The circumstances here are materially different. Plaintiff's own description of his duties establishes that he worked in the Fontana Plant's folding room, where he retrieved flat shingles from a central pallet, folded the shingles into a ridge shape, placed the finished product into a box, and placed the box on a conveyor belt or pallet. The products were manufactured at the California facility. Plaintiff has not established that he loaded the products onto vehicles transporting goods across state lines, unloaded goods arriving from interstate transportation, or otherwise handled goods that were already moving through an interstate transportation stream.

Plaintiff's declaration that a substantial amount of the products he packed were ultimately shipped outside California does not establish that his work itself was part of the interstate transportation of those products. As noted above, the Court has sustained the hearsay and foundation objections to the portion of Plaintiff's declaration on which he relies for that assertion. Even assuming some of the shingles he packed were ultimately shipped outside California, the relevant inquiry is the nature of Plaintiff's work and his relationship to the interstate movement of those goods.

The distinction between production/packaging work performed before goods enter the interstate stream and work performed on goods already in interstate transportation is significant. In *Gallegos v. Partners Personnel-Management Services, LLC* (2024) 2024 WL 3064400, the Fifth District considered a temporary worker who packed and bagged pistachios at the end of a production line before the goods entered interstate commerce. The court concluded that such work was production-line packaging rather than transportation because the employee did not directly launch the goods into interstate commerce or otherwise actively engage in their interstate transportation. Although *Gallegos* is unpublished and therefore is not precedent under California Rules of Court, rule 8.1115, its reasoning is persuasive and closely analogous to the facts presented here.

Accordingly, Plaintiff has not established that he belongs to a class of workers engaged in foreign or interstate transportation within the meaning of 9 U.S.C. § 1. The FAA therefore applies to the Agreement.

Enforceability of the Agreement

An arbitration agreement is enforceable unless a generally applicable contract defense, such as unconscionability, renders it unenforceable. (Code Civ. Proc., § 1281; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) Unconscionability has both procedural and substantive elements, and both must be present, although they need not be present to the same degree. (*Id.* at p. 114; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492.) The analysis employs a sliding scale: the greater the substantive unconscionability, the less procedural unconscionability is required. (*Ramirez*, *supra*, 16 Cal.5th at p. 494.)

Procedural Unconscionability

Procedural unconscionability concerns the circumstances surrounding formation of the agreement and focuses on oppression and surprise. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125–27.) Oppression may arise from unequal bargaining power and the absence of meaningful choice; surprise concerns whether an allegedly unfair provision was hidden or presented in a manner that frustrated reasonable expectations.

Plaintiff contends the Agreement was a contract of adhesion because it was presented on a take-it-or-leave-it basis as a condition of employment. Plaintiff further asserts that he was not provided the Agreement in advance or permitted to retain a copy, had no opportunity to consult counsel, was rushed because other applicants were waiting to use the computer, and was told the documents were “standard stuff” that needed to be signed quickly so he could begin work the following day.

The Court finds a minimal degree of procedural unconscionability.

The Agreement was presented as a condition of employment and Plaintiff had no ability to negotiate its terms. That circumstance supports a finding of adhesion and some degree of procedural unconscionability. (*Cisneros Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 591.) At the same time, the Agreement is a short, three-page, standalone arbitration agreement rather than an arbitration provision buried in a lengthy employment contract. There is insufficient evidence that Plaintiff was subjected to the type of extraordinary pressure, deception, or surprise present in cases finding a heightened degree of procedural unconscionability. See *OTO*, *supra*, 8 Cal.5th at pp. 127–28.

The Court therefore finds minimal procedural unconscionability.

Substantive Unconscionability

Substantive unconscionability concerns whether the terms of the agreement are overly harsh, unduly oppressive, or unfairly one-sided. (*OTO*, supra, 8 Cal.5th at pp. 129–30.) In the employment context, courts closely examine whether an arbitration agreement imposed by an employer allocates arbitration obligations in a manner that unjustifiably favors the employer.

Here, Plaintiff identifies several provisions that he contends are substantively unconscionable. The Court finds two provisions particularly significant: (1) the Agreement’s broad definition of covered claims; and (2) the provision extending the arbitration obligation to Plaintiff’s heirs, spouse, successors, assigns, and agents without a corresponding obligation imposed upon Express’s related entities and other beneficiaries.

The Agreement provides, in pertinent part:

“Except as provided below, both the Company and You (on behalf of Yourself as well as Your heirs, spouse, successors, assigns, and agents) agree all legal disputes and claims between them shall be determined exclusively by final and binding arbitration before a single, neutral arbitrator as described in this Agreement.”

It further provides:

“Except as provided below, claims subject to this Agreement include without limitation: all claims pertaining to Individual’s employment relationship with the Company, or the formation or termination of the employment relationship (including application for employment or any background check form or process); all claims for discrimination, harassment, or retaliation; wages; overtime; benefits; or other compensation; breach of any express or implied contract; violation of public policy; negligence or other tort claims, including without limitation: defamation, fraud, and infliction of emotional distress; and violation of any federal, state, or local law, statute, regulation, or ordinance (‘Claims’).”

The Agreement begins with expansive language requiring arbitration of “all legal disputes and claims between” the parties and then states that covered claims “include without limitation” employment claims,

tort claims, and violations of any federal, state, or local law. Thus, although many examples of covered claims concern the employment relationship, the operative language is not expressly limited to claims arising out of or relating to Plaintiff's employment.

The Court recognizes that *Ayala-Ventura v. Superior Court of Fresno County* (2026) 119 Cal.App.5th 241 provides important guidance concerning broadly worded arbitration provisions. There, the Fifth District construed an ambiguous arbitration agreement narrowly to apply only to employment-related claims and distinguished *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 based on the particular contractual language and circumstances. *Ayala-Ventura* emphasized that unconscionability is highly contextual and that a broad agreement is not necessarily unconscionable in every employment setting.

The Court nevertheless finds the Agreement here distinguishable from *Ayala-Ventura* and more closely analogous to *Cook* and *Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91. In *Cook*, the arbitration agreement required arbitration of "all claims," including claims unrelated to employment, and also required arbitration of claims against broad categories of the employer's related entities and personnel without imposing a reciprocal obligation upon those entities. The Court of Appeal held those provisions substantively unconscionable. (*Cook*, supra, 102 Cal.App.5th at pp. 324–28.)

Likewise, in *Stoker*, the Second District recently held substantively unconscionable an employment arbitration agreement containing broad "any and all claims" language and provisions that extended arbitration obligations to third parties without reciprocal obligations. The court concluded that multiple defects, viewed together with procedural unconscionability, rendered the agreement unenforceable. (*Stoker*, supra, 120 Cal.App.5th 91.)

Here, as in *Cook*, the Agreement imposes arbitration obligations beyond the core bilateral relationship between Plaintiff and Express. Plaintiff is required to arbitrate claims not only for himself but also on behalf of his heirs, spouse, successors, assigns, and agents. At the same time, the Agreement does not impose a corresponding obligation upon Express's related entities and other beneficiaries who may invoke the Agreement. The resulting asymmetry is not merely a benefit incidentally conferred upon third parties.

Rather, it expands the universe of parties who may benefit from the arbitration requirement while leaving Plaintiff subject to the corresponding burden.

Express argues that the Agreement should be construed as limited to Plaintiff's employment relationship because Express is a temporary staffing company and Plaintiff's relationship with Express could only have arisen in the employment context. The Court is not persuaded. As in *Cook* and *Stoker*, the Court cannot rewrite the Agreement's expansive language merely because a narrower construction would produce a more reasonable result.

The Court therefore finds the Agreement contains multiple substantively unconscionable provisions.

Severability

Express argues that, even if portions of the Agreement are unconscionable, the Court should sever the offending provisions and enforce the remainder.

Civil Code section 1670.5, subdivision (a), permits a court to refuse to enforce an unconscionable contract or clause, or to sever or limit the offending provision. The California Supreme Court has clarified that there is no bright-line numerical rule requiring either severance or invalidation. The appropriate inquiry is whether the illegality can be cured through severance or restriction, whether the offending provisions are collateral to the agreement's main purpose, and whether enforcing the balance of the agreement would further the interests of justice. (*Ramirez*, supra, 16 Cal.5th at pp. 516–18.)

The Court declines to sever the unconscionable provisions here.

First, the defect concerning the scope of covered claims cannot be cured simply by striking isolated language. To limit the Agreement to employment-related claims would require the Court to add limiting language that the parties did not include. Similarly, curing the lack of mutuality would require the Court to add reciprocal obligations applicable to Express's related entities or otherwise restructure the parties' allocation of arbitration rights. Such action would constitute reformation or augmentation of the Agreement rather than simple severance.

Second, the Agreement contains more than one substantively unconscionable provision, in addition to minimal procedural unconscionability. The multiple defects concern the fundamental scope and bilateral nature of the arbitration obligation rather than an isolated collateral provision.

Third, recent authority confirms that courts should not rewrite an adhesive employment arbitration agreement to create bilateral terms that the employer could have included when the agreement was drafted. In *Stoker*, the Second District declined to sever multiple unconscionable provisions because doing so would require the court to add terms limiting the agreement and would not further the interests of justice. (*Stoker*, supra, 120 Cal.App.5th at pp. 116–17.) Similarly, on remand in *Ramirez*, the Court of Appeal held that multiple defects in an adhesive employment arbitration agreement supported refusing enforcement rather than judicial modification of the agreement. (*Ramirez v. Charter Communications, Inc.* (2025) 108 Cal.App.5th 1297, 1305–07.)

The same reasoning applies here. To enforce the Agreement, the Court would need to rewrite its scope and alter the allocation of arbitration rights between Plaintiff and Express's related entities and other beneficiaries. The interests of justice would not be furthered by such judicial augmentation of an agreement imposed as a condition of employment.

Accordingly, the Court finds the Agreement **permeated by unconscionability and unenforceable in its entirety.**

GAF's Joinder

GAF is not a signatory to the Agreement. GAF argues it may nevertheless invoke the arbitration provision under principles of equitable estoppel because Plaintiff alleges that Express and GAF were joint employers or agents of one another and because Plaintiff's claims against GAF are purportedly "intimately founded and intertwined" with the contractual relationship containing the arbitration provision.

A nonsignatory may, in appropriate circumstances, invoke an arbitration agreement under principles of equitable estoppel where the plaintiff's claims against the nonsignatory are dependent upon or founded upon and inextricably intertwined with the underlying contractual obligations containing the arbitration

clause. (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271–72.) The doctrine focuses on the nature of the claims asserted against the nonsignatory.

GAF's Joinder is DENIED.

Because the Court finds the underlying arbitration Agreement unenforceable as a result of unconscionability, GAF cannot obtain greater arbitration rights than those available under the Agreement itself. GAF, as a nonsignatory, cannot invoke an arbitration provision that the Court has determined is unenforceable against the signatory Plaintiff.

Moreover, GAF has joined Express's Motion rather than establishing an independent basis for arbitration apart from the Agreement. Having determined that the Agreement is unenforceable, there is no enforceable arbitration obligation upon which GAF may rely.

RULING

For the reasons stated above, the Court rules as follows:

1. **SUSTAINS** Express's objections to Plaintiff's statements at page 2, line 28 through page 3, line 1, and page 3, lines 6–7, on the grounds of hearsay and lack of foundation.
2. **OVERRULES** Express's remaining objections to paragraph 5 of Plaintiff's declaration.
3. **DENIES** Express's Motion to Compel Arbitration of Plaintiff's Individual PAGA Claim and to Stay the Representative PAGA Claim.
4. **DENIES** GAF's Joinder in Express's Motion.